

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES TREAT
HEARING DATE: 06/11/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	8:31 AM	CASE NUMBER: C24-01973
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CASE NAME: DAVID WONG VS. JAFFE AND ASHER LLP
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*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

See Lines 8, 9, and 10 below. The case management conference is continued to November 18, 2026 at 8:30 a.m. That will also be an Order to Show Cause why the case should not be dismissed as to the Clausen defendants for lack of service of process on them.
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2.	9:00 AM	CASE NUMBER: C25-00570
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CASE NAME: CYNTHIA DUNHAM VS. AUSTREBERTO PINEDA GOMEZ

*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

See Line 11 below.

3. 8:31 AM CASE NUMBER: C25-00957
CASE NAME: EAST BAY MUNICIPAL UTILITY DISTRICT VS. MATT KAUFFMAN
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

The CMC is **continued** to June 18, 2026 at 9:00 a.m.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00688
CASE NAME: BROUWER VS. REDWOOD HOLDINGS, LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: REDWOOD HOLDINGS, LLC
TENTATIVE RULING:

Before the Court is a demurrer to plaintiff Helen Brouwer's First Amended Complaint (FAC), filed by defendant Redwood Holdings, LLC. The demurrer is **sustained without leave to amend**.

I. Background

According to the FAC, plaintiff was foreclosed upon by her lenders, Gregory Funding LLC and Gregory Funding Inc., and the property was sold to defendant at a non-judicial foreclosure sale on September 30, 2020. (FAC, ¶¶6-10.) The foreclosure sale took place during a State of Emergency in California due to the COVID-19 pandemic and "a period of legal uncertainty regarding the validity of foreclosure sales." (FAC, ¶¶12, 34.) Gregory Funding's license to conduct loan servicing activities had been restricted or revoked by the California Department of Real Estate, and defendant knew or should have known of these licensing issues. (FAC, ¶135.)

Defendant evicted plaintiff in January of 2021. (FAC, ¶¶42-43.) It then sold the property through a real estate broker for \$1,150,000, realizing a profit of at least \$430,000. (FAC, ¶¶36-39.) The sale price of \$1,150,000 was still substantially below the true fair market value, which remained approximately \$1,700,000 to \$2,175,000, suggesting the property was not properly marketed to maximize its value. (FAC, ¶¶40-41.) Plaintiff was over 80 when evicted by defendant. (FAC, ¶44.)

The FAC alleges that defendant, as a professional foreclosure purchaser regularly engaged in the business of purchasing foreclosed properties, owed plaintiff a duty of reasonable care to (1) conduct due diligence to ensure the foreclosure sale complied California law; (2) refrain from purchasing property at a foreclosure sale that lacked competitive bidding due to reasonably foreseeable circumstances that would deter prospective bidders; (3) refrain from purchasing property at a foreclosure sale conducted in violation of applicable COVID-19 emergency orders and statutory protections; (4) refrain from purchasing property at a foreclosure sale where the circumstances